

Shambu Nath Jaiswal v. State of U.P.

Allahabad High Court · Division Bench · 17 January 2020 · Writ - C No. 1356 of 2020 · **Writ disposed; petitioner to appear before Executive Engineer with objections; speaking final order within four weeks; coercive recovery stayed eight weeks; Section 127 appeal if aggrieved.**

HEADNOTE

On a writ against a recovery citation for electricity dues alleging want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005, the Court did not quash the citation. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive recovery for eight weeks, and left any further challenge to the appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Shambu Nath Jaiswal petitioned the Allahabad High Court to quash recovery on a certificate dated 25 October 2019 issued by the Executive Engineer, under which Rs. 7,14,865 was to be recovered as land revenue towards electricity dues, and for a mandamus to pass a fresh order after hearing. He alleged coercive action without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to speaking final order then Section 127 appeal

HOLDING

The Court disposed of the writ without deciding the electricity dues. The petitioner was directed to appear on 5 February 2020 before the Executive Engineer with his objection and evidence; the Engineer was to pass a speaking and reasoned final order within four weeks. Coercive recovery was stayed for eight weeks or until disposal of the objection, whichever earlier, vacated automatically on default or non-appearance (in which event the citation would stand revived). If aggrieved by the final order, the petitioner could appeal under Section 127 of the Electricity Act, 2003. ¶ [unnumbered](#)

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the recovery citation, the Court left any remaining challenge to the statutory appeal under Section 127 rather than deciding the dues in writ. ¶ [unnumbered](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 25.10.2019 AND THE QUANTUM OF ELECTRICITY DUES OF RS. 7,14,865

Merits of the assessment and alleged non-compliance with the Supply Code were not examined; a speaking final order was directed and Section 127 preserved.